

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 24-01

VISUAL COMFORT & CO.

v.

COSCO SHIPPING LINES CO., LTD.

JOINT STATUS REPORT AND PROPOSAL REGARDING SCHEDULE

Pursuant to Administrative Law Judge Linda S. Harris Crovella’s Memorandum Order on Motions to Compel (“Memorandum Order”) in this matter dated July 31, 2024, Complainant Visual Comfort & Co. (“Complainant” or “VCC”) and Respondent COSCO Shipping Lines Co., Ltd. (“COSCO” or “Respondent”) submit the following Joint Status Report and Proposed Schedule.

To date, both Parties have made best efforts to comply with the temporary schedule, including by exchanging Complainant’s expert report on June 14, 2024, and Respondent’s rebuttal expert report on July 22, 2024. Complainant has exchanged additional documents and the Parties have agreed to tentative deposition schedules, which may need to be revisited in light of remaining uncertainties about discovery, mentioned below.

On July 29, 2024, the Parties participated in a video conference with Administrative Law Judge Linda S. Harris Crovella to resolve discovery disputes on both sides. In light of the Memorandum Opinion, Complainant is generating a proposed ESI protocol for negotiation and agreement, which

it expects to provide to Respondent on or around Monday, August 5, 2024. Complainant is actively preparing revised answers to interrogatories as identified by the Presiding Officer, the timing of which may be affected by the need to review ongoing document productions.

Granted the parties agree on an ESI protocol and that Respondent subsequently run and review such searches, will necessarily require a significant extension of the procedural schedule (as will the approximately 53,000 documents recently produced by Complainant which Respondent will need time to review), given that it will likely result in a large number of hits to be reviewed by Respondent's Counsel and then produced to Complainant. The size of the extension, however, is impossible to predict at this time, before the protocol is set and the number of hits determined. Accordingly, the Parties propose that the requirement to agree on a new schedule be deferred and another Joint Status Report be ordered for Friday, August 9, 2024. The Parties hope to be sufficiently advanced by that point to allow them to put together a reasonable schedule.

DATED: August 2, 2024

Respectfully submitted,

/s/ Jennifer M. Oliver

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